

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken— to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DFCS

Date: 5/18/2026

Bill Number: HB52

Short Title (as it appears on BASIS): Minors & Psychiatric Hospitals

What action do you recommend the Governor take?

Select one.

☐ SIGN ☐ VETO ☒ LWOS

Action Justification – Why do you recommend the above action?

Please be specific.

The legislation appears to be at least partially in response to the 2022 United States Department of Justice (DOJ) report on the prevalence of Alaskan minors placed in residential treatment facilities. By signing this legislation, as well as HB36, the state is signaling to the Federal administration that we are actively working to address concerns brought forth by the DOJ.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

This legislation requires that minors receiving evaluation or treatment at a psychiatric hospital are given access to confidential video communications with a parent or guardian, requires the Department of Health to inspect each psychiatric hospital twice a year, requires the Department of Health to interview half of the residents of the psychiatric hospital, and requires that psychiatric hospitals report on the use of seclusion and restraints to the Department of Health and patient's parent or guardian. In addition, the legislation requires the Department of Health to prepare, publish online, and provide to the legislature, an annual report regarding minors placed in psychiatric hospitals. The report is required to contain data on the use of seclusion and

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restraints, a summary of department inspections, and data provided by the Department of Family and Community services concerning minors placed at in-state and out-of-state psychiatric hospitals and their length of stay.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

Section 1: Amends AS 47.30 Mental Health, creating new section AS 47.30.843 Minors undergoing inpatient mental health evaluation and treatment. The new section creates the right for minors receiving treatment in psychiatric hospitals, licensed by the Department of Health, to receive access to one cumulative hour of confidential video communication with a parent or guardian each week. The hour of weekly cumulative contact must occur over four occasions or less and will be facilitated by the psychiatric hospital. The right to confidential video communication is not applicable if its otherwise prohibited by law or court order or considered therapeutically inadvisable by an overseeing physician.

In some cases, it is inappropriate for children in state custody to have contact with their parents. The department will have to ensure that a court ordered exception is provided for these children if contact is not considered therapeutically inadvisable by the minor's overseeing physician.

Section 2: Amends AS 47.32.030 Powers of the Department of Health and the Department of Family and Community Services; delegation to municipality, by adding a new section requiring the Department of Health to prepare an annual report regarding minors placed in psychiatric hospitals. The report is required to be published to the Department of Health's internet website and is to be submitted to the legislature. The report must contain information and data on the use of seclusion and restraints reported by psychiatric hospitals, summarize Department of Health findings from the inspections of psychiatric hospitals, and contain data provided by the Department of Family and Community Services.

The department is required to provide to the Department of Health data on the number of minors who received residential care at psychiatric hospitals in the state, the number of minors in state custody who received residential care at out-of-state psychiatric hospitals, and the amount of time each of those minors spent at psychiatric hospitals in each of those settings. The Department of Health is required to include this data in the annual report. The Division of Juvenile Justice and Office of Children's Services currently track each of these data metrics and can provide the required data to the Department of Health with minimal programmatic impact.

Sections 3-5: Amend AS 47.32 Centralized Licensing and Related Administrative Procedures, impacting the Department of Health.

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Section 6: Creates an effective date of July 1st, 2025 for the legislation.

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

SB44

Support/Opposition of the Bill

Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

Support:

Benjamin Mallot, President, Alaska Federation of Natives, (907) 274-3611

Ben Jones, Director of Legal and Policy Initiatives, Lives in the Balance

Tracy Charles-Smith, President, Dot Lake Village, (907) 347-1251

Oppose:

Steven Pearce, Director, Citizens Commission on Human Rights; (206) 755-5230 (Main line)

Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

Commissioner’s Signature: Tracy A. Dempeling Date: 5/18/26

I have reviewed the above information and provided it to the Governor’s Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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